

M/S Silverton Papers Ltd. v. Pashchimanchal Vidyut Vitram Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 15 November 2018 · Writ - C No. 29036 of 2008 · **Writ dismissed in terms of Dev Prayag Paper Mill.**

HEADNOTE

Writ challenging an additional-security demand and clause 4.20(1) of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 dismissed in terms of the Division Bench judgment in Dev Prayag Paper Mill.

FACTUAL SUMMARY

Silverton Papers Ltd. and another petitioned the High Court against Pashchimanchal Vidyut Vitram Nigam Ltd. over a demand for additional security for electricity supply, with a warning that non-payment within the stipulated period would invite action in accordance with law. They also challenged clause (1) of paragraph 4.20 of the Electricity Supply Code, 2005 — insofar as it lets the consumer opt when the distribution licensee provides a choice — as ultra vires section 47(5) of the Electricity Act, 2003. Counsel accepted that identical petitions had already been dismissed.

HOLDING-UNITS

INTERPLAY · UP-2005::4.20

additional security; consumer option under cl. 4.20

QUESTION

Whether clause (1) of paragraph 4.20 of the Electricity Supply Code, 2005 is ultra vires section 47(5) of the Electricity Act, 2003.

HOLDING

The writ petition challenging the additional-security demand and clause (1) of paragraph 4.20 of the Electricity Supply Code, 2005 as ultra vires section 47(5) of the Electricity Act, 2003 is dismissed in terms of the judgment dated 21 March 2017 in *M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.* (Writ-C No. 30898 of 2016), counsel having fairly submitted that identical matters had already been dismissed and that the lead judgment was pending in the Supreme Court. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>M/S Dev Prayag Paper Mill (Pvt.) v. State of U.P.</i> Writ-C No. 30898 of 2016 (Allahabad, 21.3.2017)			1	Referred